

ARIZA v LAKESIDE VENTURES, LLC

22CV46059

**PETITIONER'S MOTION TO VACATE PRELIMINARY INJUNCTION; PLAINTIFF'S
MOTION TO COMPEL PRODUCTION OF DOCUMENTS**

Motion to Vacate Preliminary Injunction:

This matter involves a dispute over the sale of a mobile home estate located at 1475 Railroad Flat Road, Mokelumne Hill, CA ("Mobile Home Estate.") Before the Court is the motion to compel production of documents filed by Plaintiff Helen Ariza ("Plaintiff") against Defendants Lakeside Ventures, LLC, Bonnie K. Tuckerman-Aho (Hurley), Scott Nordyke and Arthur Trillo ("Defendants").

On January 19, 2024, the Court granted the motion for preliminary injunction filed by Defendants Nordyke and Trillo. Pursuant to that ruling, the Plaintiff was ordered to refrain from representing that she was an owner in the Mobile Home Park, had authority to collect rents, to evict tenants, to make alterations to the Park, to incur debts related to the Park or to solicit tenants to file complaints against the Park.

Now before the Court is Plaintiff's motion to vacate the Preliminary Injunction. Plaintiff does not cite any legal theory, case law, or statute upon which the motion is brought, although she does reference Code of Civil Procedure section 473 in the pleading's caption.

Code of Civil Procedure 473(a) allows for amendments to pleadings to correct mistakes, which is inapplicable herein. Subsection (b) allows for a court to relieve a party from a judgment or ruling against it based on "mistake, inadvertence, surprise, or excusable neglect." Plaintiff makes no such allegations in her motion to vacate. Rather, the motion is simply a set of allegations that Nordyke and Trillo are not operating the Park according to appropriate law or standards. She provides no citation that would authorize the Court to vacate the injunction based on her allegations.

Accordingly, Plaintiff's motion to vacate the preliminary injunction currently in place is **DENIED**.

Motion to Compel Production of Documents:

This matter involves a dispute over the sale of a mobile home estate located at 1475 Railroad Flat Road, Mokelumne Hill, CA ("Mobile Home Estate.") Before the Court is the motion to compel production of documents filed by Plaintiff Helen Ariza ("Plaintiff") against Defendants Lakeside Ventures, LLC, Bonnie K. Tuckerman-Aho (Hurley), Scott Nordyke and Arthur Trillo ("Defendants").

On February 11, 2025, Plaintiff filed a motion to compel production of documents against the named Defendants. Defendants, including Lakeside, filed a joint opposition to the motion to compel. The Court reminds Lakeside that as a limited liability company, it cannot represent itself and must be represented by a licensed attorney. (*CLD Construction, Inc. v. City of San Ramon* (2004) 120 Cal.App.4th 1141, 1146.)

On March 19, 2025, Plaintiff filed an amended motion to compel, adding non-parties Gilbert Mink, Rashel Rosa and Pamela Canessa.

The motions do not comply with Local Rule 3.3.7. All matters noticed for the Law & Motion calendar shall include the following language in the notice:

3 3 7 Tentative Rulings (Repealed Eff 7/1/06, As amended 1/1/18) All parties appearing on the Law and Motion calendar shall utilize the tentative ruling system. Tentative Rulings are available by 2:00 p.m. on the court day preceding the scheduled hearing and can be accessed either through the court's website or by telephoning 209-754-6285. The tentative ruling shall become the ruling of the court, unless a party desiring to be heard so advises the Court no later than 4:00 p.m. on the court day preceding the hearing including advising that all other sides have been notified of the intention to appear by calling 209-754-6285. Where appearance has been requested or invited by the Court, all argument and evidence is limited pursuant to Local Rule 3.3. All matters noticed for the Law & Motion calendar shall include the following language in the notice:

Pursuant to Local Rule 3.3.7, the Court will make a tentative ruling on the merits of this matter by 2:00 p.m. the court day before the hearing. The complete text of the tentative ruling may be accessed on the Court's

website or by calling 209-754-6285 and listening to the recorded tentative ruling. If you do not call all other parties and the Court by 4:00 p.m. the court day preceding the hearing, no hearing will be held and the tentative ruling shall become the ruling of the court [emphasis in original.]

Failure to include this language In the notice may be a basis for the Court to deny the motion.

Based on the foregoing, the motion is **DENIED**, without prejudice to refile. Plaintiff is on notice that continued failure to include the required language in her motions may result in denials with prejudice.

Plaintiff is also instructed to review the requirements for filing motions, and supporting memorandum, as set forth in California Rule of Court 3.1112. Plaintiff is further instructed to review Code of Civil Procedure section 2031.310 which sets forth the requirements for bringing motions to compel production of documents.

The Clerk shall provide notice of this Ruling to the parties forthwith. No further formal Orders are required.